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PROPTX INTERNET DATA EXCHANGE ("IDX") DATA AGREEMENT

This Agreement together with all materials referenced herein is a legal agreement and is made and entered into by and between PROPTX INNOVATIONS INC. ("PROPTX"), a corporation incorporated pursuant to the laws of the Province of Ontario, and TANMAY RAO ("IDX Data Subscriber") and if applicable, the Third Party Service Provider identified below. In consideration of the mutual undertakings contained in this Agreement, the parties agree as follows:

ARTICLE 1 PARTICIPATION IN IDX SYSTEM

- 1.1 By electing to participate in the IDX System or any part thereof, IDX Data Subscriber hereby consents and agrees that all or part of any IDX Data (as may be designated by PROPTX from time to time) provided by IDX Data Subscriber, may be included in the IDX System and may appear on any Participating IDX Data Subscriber IDX website in accordance with the terms and conditions of this Agreement.
- 1.2 By electing to no longer participate in the IDX System or any part thereof, or upon suspension or termination of this Agreement for any reason whatsoever, pursuant to Article 12 herein, neither IDX Data Subscriber nor Third Party Service Provider shall have any access to the IDX System or any part thereof, including to any IDX Data at the time of electing not to participate, suspension, or termination of this Agreement, whichever occurs first. Any IDX Data of IDX Data Subscriber will be removed from the IDX System within seven (7) business days of such event and any IDX Data (including IDX Data transmitted through an IDX Datafeed) used or accessed by IDX Data Subscriber or Third Party Service Provider must be erased, deleted and destroyed in accordance with section 12.6 herein.

ARTICLE 2 GENERAL

- 2.1 This Agreement sets out the requirements for the orderly and efficient operation of the IDX System (as defined below) and is intended to make the IDX Data Subscriber and Third Party Service Provider aware of, among other things, what PROPTX deems to be both acceptable use and unacceptable use of the IDX System and any part thereof.
- 2.2 This Agreement should be read in conjunction with PROPTX Requirements (as defined below).
- 2.3 By using the IDX System or any part thereof, IDX Data Subscriber and Third Party Service Provider agree to, and must comply with, this Agreement and the PROPTX Requirements.
- 2.4 IDX Data Subscriber and Brokerage are fully responsible for all access to and use of the IDX System and any part thereof, whether through IDX Data

Subscriber's assigned personal account, or through Third Party Service Provider's assigned personal account.

- 2.5 In the event of any conflict or inconsistency between this Agreement and any PROPTX Requirements, the PROPTX Requirements shall govern.

ARTICLE 3 DEFINITIONS

- 3.1 Any capitalized term used herein shall have the same meaning as contained in the MLS® Rules and Policies, unless otherwise expressly defined in this Agreement.

- 3.2 The following terms shall have the meanings set forth below:

"Agreement" or **"IDX Data Agreement"** means this agreement, including any preamble and schedules, as amended, restated or replaced by PROPTX from time to time.

"AI System" means any type of system, program, algorithm, tool, neural network, large language model ('LLM') or similar language model, Software as a Service ('SaaS'), mobile application, computer application, computer software, database, or any other type of system that incorporates any artificial intelligence ('AI') technology and is capable of ingesting or producing any type of content, including, but not limited to, text, images, audio, video, graphics, and synthetic data.

"Confidential Information" has the meaning set out at Article 8 herein.

"Consumer(s)" means a consumer with whom the Member has first established a lawful broker-consumer relationship, including, where necessary, completion of any actions required by provincial and/or federal law in connection with providing real estate brokerage services to clients and customers.

"Designate" means the designated signatory, an active Member of PROPTX within the Member's Brokerage, as decided by the Broker of Record, authorized via TorontoMLS and maintained in a database secured by PROPTX.

"Effective Date" shall be the date of approval of this Agreement by PROPTX as set out herein.

"Fees" has the meaning set out at Article 4 herein.

"IDX Data" means all or any part of the subset of active listings extracted by PROPTX from the Listing(s) (which may include, among other things, photos, virtual tour links, etc., as may be determined at the discretion of PropTx from time to time) provided by Participating IDX Data Subscribers and Brokerages and compiled and aggregated into the IDX Database and which information can be accessed by other Participating IDX Data Subscribers through the IDX System, and includes information transmitted through an IDX Datafeed, all of which may be determined at the exclusive discretion of PROPTX from time to time.

"IDX Database" means the compilation, aggregation and storage of all IDX Data, or any part thereof, as well as its selection, assembly and/or arrangement from time to time, and any associated software, which is incorporated into and is a part of the IDX System, as may be amended from time to time.

"IDX Datafeed" means an electronic transmission of IDX Data from PropTx to IDX Data Subscriber or Third Party Service Provider, as provided by PROPTX

from time to time in its sole discretion, and which information transmitted will, at all times, be subject to the PROPTX Requirements and this Agreement.

"IDX Data Subscriber" means the Participating IDX Data Subscriber that is a party to this Agreement.

"IDX System" means the proprietary internet-based IDX service owned and operated by or on behalf of PROPTX, and any successor or replacement service thereto and includes the IDX Database, IDX Data, IDX Datafeed and any information transmitted through an IDX Datafeed.

"Internet Data Exchange" or "IDX" is the exchange of IDX Data between Participating IDX Data Subscribers and Brokerages for the purpose of IDX Data Subscriber carrying on its business of a bona fide trade in real estate in Ontario for the Brokerage that employs it.

"Member" shall have the meaning designated in Article 2 of the By-laws and shall also include a Member's brokers and salespersons.

"MLS® Database" means the compilation, collection, aggregation and storage of all, or any part of, the information, comments, opinions, statements, advice, descriptions, services, offers, data, files, links, ideas, images, graphics, audio clips, video clips, icons, or any other form of content or information, as well as its selection, assembly and arrangement, as may be amended from time to time, and any associated software, which form a part of PropTx's MLS® System, and any successor or replacement service thereto.

"MLS® Rules and Policies" means the rules and policies enacted by PROPTX, and as may be amended, restated or replaced from time to time, by PROPTX in its sole discretion, which govern, among other things, the operation and use of PROPTX's MLS® System.

"Participating IDX Data Subscribers" means Members and their Brokerages (where applicable) that subscribe to and participate in the IDX System and execute an agreement in the form of this IDX Data Agreement.

"Personal Information" shall have the meaning attributed to such term in the *Personal Information Protection and Electronic Documents Act* S.C. 2000, c.5, as such legislation may be amended from time to time.

"Purpose" means to permit IDX Data Subscriber to display on Subscriber Website(s) given IDX Data which is transmitted through an IDX Datafeed to IDX Data Subscriber for the purpose of use by Consumers that have a bona fide interest in the purchase, sale, or lease of real estate of the type being offered through Subscriber Website and for the purpose of IDX Data Subscriber carrying on its business of a bona fide trade in real estate in Ontario for the Brokerage that employs it.

"Services" shall have the meaning set out at Article 4 herein.

"Standards" means the document(s) created and/or amended from time to time by the Board of Directors of PROPTX which sets out the minimum technological standards relating to the hardware and software configuration and technology needed to access and use PROPTX's MLS® System and IDX System.

"Subscriber Website(s)" refers to any one (1) or more (subject to a maximum of three (3)) internet website(s), or a feature of any such internet website(s), maintained and operated by IDX Data Subscriber or by a Third Party Service Provider on behalf of IDX Data Subscriber, subject to IDX Data Subscriber's

oversight, supervision, and accountability and in accordance with the PROPTX Requirements, the URL(s) for which website(s) have been disclosed by IDX Data Subscriber to PROPTX using an IDX Data Subscriber Website Information and Brokerage Approval Section of the PropTx Online Agreement System attached hereto as Schedule B or a Subscriber Website URL Change/Update Section of the PROPTX Online Agreement System attached hereto as Schedule F.

"Third Party Service Provider" refers to an entity or person designated by an IDX Data Subscriber to operate Subscriber Website(s) on behalf of IDX Data Subscriber, subject to IDX Data Subscriber's supervision, accountability and compliance with the PROPTX Requirements and this Agreement. No Third Party Service Provider has independent participation rights in the PROPTX MLS® System or IDX System by virtue of its right to receive information on behalf of an IDX Data Subscriber. No Third Party Service Provider has the right to use IDX Data except such data used in connection with operation of a Subscriber Website on behalf of one or more IDX Data Subscribers. Access by a Third Party Service Provider to any such data is derivative of the rights of the IDX Data Subscriber on whose behalf the Third Party Service Provider operates a Subscriber Website(s).

"PROPTX Intellectual Property" shall have the meaning set out at Article 7 of this Agreement..

"PROPTX Requirements" means the agreements, rules, regulations, policies, guidelines and other documents which govern or regulate the access to and use of any software, computer system, wireless devices, or Internet-based application owned by PROPTX or to which PROPTX provides access, and includes but is not limited to, PROPTX's Authorized User Agreement, the MLS® Rules and Policies, the PROPTX By-Laws, the Standards, and any other PROPTX documents by which the Brokerage, IDX Data Subscriber and Third Party Service Provider is each bound, including with respect to, among other things, confidentiality, privacy, network security, information or data security and/or the operation of the IDX System; as any of the foregoing may be amended and/or replaced from time to time; and all applicable laws and regulations as may be amended from time to time

"URL(s)" means the uniform resource locator(s) specifying the internet address of the Subscriber's Website(s) maintained and operated by IDX Data Subscriber or by a Third Party Service Provider on behalf of IDX Data Subscriber.

ARTICLE 4 SERVICES, LICENSE, FEES

- 4.1 Services and License. Subject to the terms and conditions herein, PROPTX shall provide to IDX Data Subscriber or to Third Party Service Provider, if operating Subscriber Website on behalf of IDX Data Subscriber, an IDX Datafeed to IDX Data Subscriber or Third Party Service Provider, solely and exclusively for the Purpose ("Services"). Subject to the terms and conditions herein, PropTx hereby grants to IDX Data Subscriber and Third Party Service Provider, if operating Subscriber Website on behalf of IDX Data Subscriber, a non-exclusive, non-transferable, non-sublicensable, revocable, limited license to use such IDX Data as may be provided to IDX Data Subscriber or Third Party Service Provider through the IDX Datafeed strictly and exclusively for the Purpose.

- 4.2 Fees and Payment. In consideration for the Services and rights granted under this Agreement, IDX Data Subscriber agrees to pay to PropTx the non-refundable license fees and other fees (if any) described at [Schedule A](#) attached to this Agreement (the "Fees") as may be amended by PROPTX from time to time. The Fees shall be due and payable as provided at [Schedule A](#) attached hereto.
- 4.3 Payment Default. In the event that IDX Data Subscriber is late or otherwise fails to pay any such payment due hereunder, IDX Data Subscriber shall be liable to PROPTX for such amounts until paid and IDX Data Subscriber shall pay interest at the rate of 1.25% per month on all outstanding amounts from the date the amount was due until the full amount is received by PROPTX. IDX Data Subscriber shall also reimburse PROPTX for all expenses and costs incurred by PROPTX for collection of unpaid amounts, including, without limitation, attorneys' fees and costs. PROPTX is entitled to receive the amounts provided for under this Agreement in addition to any other rights or remedies available to PROPTX with respect to IDX Data Subscriber and/or Third Party Service Provider's breach of any obligation under this Agreement.
- 4.2 Own Expenses and Costs. IDX Data Subscriber and Third Party Service Provider shall each be responsible for its own expenses and costs under this Agreement, and PROPTX shall have no obligation whatsoever to reimburse Third Party Service Provider or IDX Data Subscriber for any expenses or costs incurred by Third Party Service Provider or IDX Data Subscriber in the exercise of IDX Data Subscriber's or Third Party Service Provider's rights or in the performance of IDX Data Subscriber's and Third Party Service Provider's duties under this Agreement.

ARTICLE 5 **IDX DATAFEED, MONITOR, SECURITY, AUDIT**

- 5.1 Means of Receiving IDX Datafeed. Receipt by IDX Data Subscriber or Third Party Service Provider, as applicable, of IDX Datafeed shall be exclusively by the means, including the format and method of delivery, designated by PROPTX from time to time. PROPTX may, in its sole discretion and at any time, change the means and nature of delivery of IDX Datafeed to IDX Data Subscriber or Third Party Service Provider. PROPTX will endeavour to provide IDX Data Subscriber and Third Party Service Provider (if applicable) reasonable notice, but is not obligated to do so.
- 5.2 PROPTX Monitoring Rights and Access to Subscriber Website(s). IDX Data Subscriber and Third Party Service Provider shall, at all times, make Subscriber Website(s) readily accessible to PROPTX and Participating IDX Data Subscribers for purposes of verifying compliance with the PropTx Requirements and this Agreement. Without limiting the generality of the foregoing, for security, monitoring and network maintenance purposes, and the like, at any time, PROPTX and Participating IDX Data Subscribers are authorized, but not obligated, to monitor and access applications and systems, monitor network traffic and usage, and to obtain full access to Subscriber Website(s), Third Party Service Provider server, and all applicable systems to ensure that any data transmitted through an IDX Datafeed is displayed on Subscriber Website(s) in accordance with this Agreement and with the PROPTX Requirements. IDX Data Subscriber and Third Party Service Provider agree to render reasonable

assistance and cooperation to PropTx if so requested in connection with any of the foregoing.

- 5.3 Interruption, etc. of IDX Datafeed. PROPTX shall not be obligated to make any changes to PROPTX server(s), including any software running on PROPTX server(s), the configuration, applicable protocols, or any other aspect of PROPTX server(s) for any reason. IDX Data Subscriber and Third Party Service Provider acknowledge that the IDX System and/or receipt of IDX Datafeed may, from time to time, be unavailable to IDX Data Subscriber or Third Party Service Provider for any reason, including without limitation, whether because of technical failures or interruptions, hardware malfunctions, software malfunctions, upgrades, intentional downtime for service, or changes to PROPTX server(s), causes beyond the reasonable control of PROPTX and/or not reasonably foreseeable by PROPTX, or otherwise. IDX Data Subscriber and Third Party Service Provider agree that any modification of PropTx server(s), any interruption, delay, omission, or unavailability of the IDX System or any part thereof, the Services, or receipt of, or display of IDX Datafeed shall not constitute a default under this Agreement. PROPTX shall not, in any way be responsible for any such interruption or prevention of receipt of and/or display of IDX Datafeed, Services and/or access to or use of IDX System or any part thereof, and PROPTX shall have no liability of any nature to IDX Data Subscriber or Third Party Service Provider for, and IDX Data Subscriber and Third Party Service Provider waive all claims arising out of, any of the foregoing, or otherwise.
- 5.4 IDX Data Subscriber and Third Party Service Provider Security and Audit. IDX Data Subscriber and Third Party Service Provider shall utilize appropriate security protection measures, such as firewalls and shall maintain an audit trail of Consumers' activity on Subscriber Website(s) and through any Third Party Service Provider server and make that information available to PROPTX, if PROPTX has determined in its sole discretion that any Subscriber Website or Third Party Service Provider server has been the cause of, and/or permitted a breach in, the security of the IDX System or any part thereof, PROPTX's MLS® System or a violation of any PROPTX Requirements.
- 5.5 Use of Internet. IDX Data Subscriber and Third Party Service Provider acknowledge that there are certain security, corruption, transmission errors, and access availability risks associated with using open networks such as the internet and IDX Data Subscriber and Third Party Service Provider hereby expressly assume all such risks. PROPTX shall not be responsible for any failure in providing the IDX Datafeed and/or access or use of the IDX System or any part thereof due to malfunction or loss of IDX Data Subscriber or Third Party Service Provider system or internet service providers or from the malfunction or failure of hardware, software or services used by IDX Data Subscriber or Third Party Service Provider.
- 5.6 IDX Data Subscriber and Third Party Service Provider Software and Hardware. Each of IDX Data Subscriber and Third Party Service Provider is solely responsible, at its expense, for acquiring, providing, servicing, updating, maintaining, and ensuring the compatibility with, all the software, hardware and communication services owned or operated by it, in order to ensure access to the IDX System or any part thereof in accordance with the terms herein.
- 5.7 Notification. IDX Data Subscriber and Third Party Service Provider shall each promptly notify PROPTX if either becomes aware of any error, bug, or security breach, or any unauthorized use, reproduction or distribution of the IDX System

or any part thereof. Subject to the foregoing, IDX Data Subscriber and Third Party Service Provider shall each maintain all such information in confidence in accordance with the confidentiality provisions herein

- 5.8 Liability for Use of IDX Datafeed. IDX Data Subscriber is responsible for any liability or loss of goodwill associated with problems of data integrity, accuracy or timeliness arising from IDX Data Subscriber's use, either directly, or indirectly through Third Party Service Provider, of the IDX System or any part thereof.

ARTICLE 6

CONDITIONS AND RESTRICTIONS ON USE

- 6.1 Compliance. When using the IDX System or any part thereof, IDX Data Subscriber and Third Party Service Provider must comply with the terms and conditions of this Agreement and all of the PROPTX Requirements.
- 6.2 Restrictions. Except as expressly authorized in this Agreement or by PROPTX in writing, IDX Data Subscriber and Third Party Service Provider shall not facilitate, cause, assist, or allow any person or third party, directly or indirectly, to do under any circumstances whatsoever, any unauthorized activity, including without limitation;
- (a) access or use the IDX System or any part thereof, in a manner that is contrary to or in violation of the PROPTX Requirements, and/or for any purpose other than as permitted herein. Without limiting the generality of the foregoing, except as permitted herein, neither IDX Data Subscriber nor Third Party Service Provider shall use the IDX System or any part thereof, in connection with any website (other than display on Subscriber Website), wireless device, other electronic or digital devices, or any other means, or internet posting, advertising, unsolicited products or services, promotional material or any other display, distribution, publication or republication to the public or any group or third party;
 - (b) assist, allow or permit any person or entity to gain access to or use of the IDX System or any part thereof, by or through IDX Data Subscriber or Third Party Service Provider, or through IDX Data Subscriber's or Third Party Service Provider's password, Authenticator and/or assigned personal accounts, or access or use the IDX System or any part thereof, and/or to provide service bureau, hosting or time-sharing services or to support the operations of any other person or entity;
 - (c) use or attempt to use another Participating IDX Data Subscriber's or authorized third party service provider's password, Authenticator, assigned personal accounts or other access information to gain access to or use of the IDX System or any part thereof;
 - (d) fail to maintain reasonable security precautions to protect its password and/or Authenticator and assigned personal accounts, or other access information from unauthorized access, use or disclosure, fail to maintain reasonable security precautions to prevent scraping, data mining, data piracy and other unauthorized access, use and/or exploitation of the IDX System or any part thereof, fail to monitor its Subscriber website(s) for indications that any such information is being scraped, mined, or other unauthorized access, use and/or exploitation of any such information and/or fail to immediately notify PROPTX upon becoming aware of any of the foregoing;
 - (e) attempt, in any way whatsoever, to circumvent any computer security measures or resource restrictions, or attempt to gain unauthorized access to PROPTX

operating systems, servers and/or networks, including by obscuring or falsifying the identity of IDX Data Subscriber or Third Party Service Provider;

- (f) distribute, redistribute, copy, produce, reproduce, publish, republish, duplicate, alter, modify, or transfer, the IDX System or any part thereof, or merge IDX Data or any part thereof, with other data or any AI System, or publish IDX Data in any form, in whole or in part or in any other way exploit any such data;
- (g) scrape, data mine, download, distribute, redistribute, export, merge, deliver, or transmit the IDX System or any part thereof, including through the use of AI System algorithms or bots except downloading to IDX Data Subscriber server or Third Party Service Provider server, as applicable, as permitted under this Agreement. Without limiting the foregoing, prohibited uses include "screen scraping", "database scraping" and any other activity intended to collect, store, reorganize, profile, extract patterns, and/or manipulate the IDX System or any part thereof;
- (h) market, sell, resell, assign, exchange, barter or transfer, convey, loan, lease, rent, grant access to, license or sublicense, or in any other manner exploit the IDX System or any part thereof. IDX Data Subscriber or Third Party Service Provider agree to take all reasonable steps necessary to protect the IDX System and any part thereof, from any of the foregoing, including but not limited to, unauthorized access, distribution, reproduction, copying, use, or in any other way, exploit the IDX System or any part thereof;
- (i) access or use the IDX System or any part thereof in a manner that is contrary to or in violation of this Agreement, PROPTX Requirements and/or for any purpose other than as permitted herein;
- (j) use a robot, spider, scraper, or other automatic device, software, AI System, or manual process for any purpose, including to directly or indirectly access, monitor, or copy the IDX System or any part thereof;
- (k) use an AI System to produce any content for the IDX System or provide any content retrieved or derived from the IDX System to an AI System for any purpose;
- (l) use any device, software or routine to bypass PROPTX robot exclusion headers or any other security measures, or interfere, or attempt to interfere, with PROPTX servers, the IDX System or any part thereof;
- (m) decompile, reverse engineer, disassemble, modify and/or adapt the IDX System or any part thereof, or any software owned or licensed by PROPTX, or attempt to create any source code that is derived from the IDX System or any part thereof, or any software owned or licensed by PROPTX;
- (n) use the IDX System or any part thereof, Subscriber Website and/or any other means to conduct any abusive practices including transmitting anything defamatory, threatening, hateful, harassing, vulgar, obscene, harmful, or invasive of anyone's privacy;
- (o) impair, jeopardize, violate or infringe the rights of PROPTX, Participating IDX Data Subscribers or any person or entity, including, without limitation, intellectual property, privacy, and/or contractual rights;
- (p) cause excessive strain on PROPTX server(s) or system(s), or cause unwarranted or unsolicited interference with other Participating IDX Data Subscribers' or their third party service providers' use of or access to the IDX System or any part thereof;

- (q) cause or permit anything that will prejudice or hamper the reputation or goodwill of PROPTX;
- (r) disclose, or permit the disclosure of, the IDX System or any part thereof, to any person except as specifically permitted in this Agreement;
- (s) syndicate or redistribute, by any means, the IDX System or any part thereof;
- (t) cause or take any action which might reasonably be construed as injurious or detrimental to the interests of PROPTX or of any other Participating IDX Data Subscribers; and/or
- (u) represent or suggest any affiliation between PROPTX and IDX Data Subscriber and/or between PROPTX and Third Party Service Provider.

6.3 Conditions on Operating Subscriber Website(s). In operating Subscriber Website(s), in addition to its obligations under this Agreement and the PROPTX Requirements, IDX Data Subscriber and Third Party Service Provider shall comply with the following requirements, as may be amended from time to time in PROPTX's sole discretion:

- (a) No Listing(s) other than the data transmitted through an IDX Datafeed may be displayed on Subscriber Website(s).
- (b) The number of Listing(s) that Consumers may view or retrieve on or from a Subscriber Website in response to an inquiry will be limited to 100 Listing(s).
- (c) The listing Brokerage must be clearly displayed for all Listing(s) including thumbnail views. The listing Brokerage must be in the same font and size as the other Listing(s) details and not visually separated from the Listing(s) display.
- (d) The display of other Brokerages' Listing(s) obtained from other sources (e.g., other MLS® non-participating Brokerages, etc.) on Subscriber Website(s) shall display the source from which each such Listing(s) was obtained.
- (e) The contact information of the IDX Data Subscriber operating Subscriber Website(s) must be clearly separated from the detail display of a Listing(s) which is listed by a Brokerage other than the IDX Data Subscriber's own Listing(s)
- (f) The content of any information transmitted through an IDX Datafeed, or any part thereof, may not be changed in any way from the content as it is provided by PROPTX. Notwithstanding the foregoing, any information transmitted through an IDX Datafeed may only be reformatted but only to the extent of choosing which fields to display based on objective criteria such as geography or type of property.
- (g) Each Subscriber Website including the URL of such Subscriber Website and any changes in such URL must be preapproved by the IDX Data Subscriber's managing Broker of Record or its designate under "IDX Data Subscriber Website Information and Brokerage Approval", in the PROPTX Online Agreement System, or a "Subscriber Website URL Change/Update Form" on the PROPTX Online Agreement System, an executed copy of which shall be provided to PROPTX.
- (h) IDX Data Subscriber shall ensure that the information transmitted through an IDX Datafeed displayed on Subscriber Website(s) is refreshed not less than every 24 hours.
- (i) IDX Data Subscriber shall have a notice on all information transmitted through an IDX Datafeed displayed on IDX Data Subscriber's Subscriber Website(s)

indicating that the information is deemed reliable but is not guaranteed accurate by PROPTX.

- (j) Subscriber Website(s) must not claim to provide full access to PROPTX's MLS® System or IDX System.
- (k) IDX Data Subscriber shall prominently post a notice on each Subscriber Website stating that the Subscriber Website may only be used by Consumers that have a bona fide interest in the purchase, sale, or lease of real estate of the type being offered through such Subscriber Website. The following notice may be used: "The information provided herein must only be used by consumers that have a bona fide interest in the purchase, sale, or lease of real estate and may not be used for any commercial purpose or any other purpose."

- 6.4 Authorization of Third Party Service Provider to Receive IDX Datafeed. Third Party Service Provider hereby acknowledges and agrees that (i) Third Party Service Provider has no independent Member rights in IDX Data received via an IDX Datafeed by virtue of this Agreement; (ii) Third Party Service Provider shall not use IDX Data except such IDX Data as may be provided through an IDX Datafeed in connection with operation of Subscriber Website(s) pursuant to this Agreement; and (iii) receipt by Third Party Service Provider of the IDX Datafeed is derivative of the rights of IDX Data Subscriber. For greater certainty, the termination of the rights and license granted herein to IDX Data Subscriber shall result in the termination of the rights and license granted herein to Third Party Service Provider.

ARTICLE 7 INTELLECTUAL PROPERTY

- 7.1 Ownership of Intellectual Property. IDX Data Subscriber and Third Party Service Provider acknowledge and agree that the PROPTX's MLS® System, MLS® Database, IDX System and any part thereof, are proprietary to PROPTX and/or its licensors and are protected by copyright, trademark, patent and other intellectual property laws of Canada and international treaties and conventions and other applicable laws (collectively "PROPTX Intellectual Property"). Third Party Service Provider and IDX Data Subscriber each further acknowledges and agrees that all right, title, and interest (including without limitation all copyright, trademark, patent and trade secret rights) now existing or hereafter coming into force, in and to PROPTX Intellectual Property are and shall remain the sole property of PROPTX and/or its licensors. Nothing in this Agreement shall be construed as conveying or granting to IDX Data Subscriber or Third Party Service Provider an interest or right of any kind, express or implied, in or to any PROPTX Intellectual Property and any other rights, including in relation to all of the foregoing, except for the limited rights granted herein.
- 7.2 Trademark License. PROPTX further grants to IDX Data Subscriber or Third Party Service Provider, if Third Party Service Provider is operating IDX Data Subscriber's Subscriber Website(s), a limited, non-exclusive, non-transferable, non-sublicensable revocable license to use PROPTX's trademark(s) identified in [Schedule C](#) attached hereto ("PROPTX Trademark") for the sole purpose of identifying PROPTX as the owner of any PROPTX Intellectual Property, including any PROPTX Trademark(s) and any associated goods/services. PROPTX may subsequently grant similar rights to IDX Data Subscriber and Third Party Service

Provider, if Third Party Service Provider is operating IDX Data Subscriber's Subscriber Website(s), to use other trademarks of PROPTX, and IDX Data Subscriber's and Third Party Service Provider's use thereof shall be subject to applicable provisions of this paragraph and any other requirements as may be provided by PROPTX from time to time.

- 7.3 No Rights. IDX Data Subscriber and Third Party Service Provider acknowledge and agree that neither has any rights in and to and shall not obtain, through the terms of this Agreement or otherwise, any rights in and to any copyright, trademarks, patent, and/or other proprietary or intellectual property rights of PROPTX and/or its licensors, now or hereafter coming into existence, including without limitation, in and to PROPTX Intellectual Property, and any part of, or relating to, any of the foregoing.
- 7.4 Restrictions. IDX Data Subscriber and Third Party Service Provider shall not, nor shall either assist any person or entity, in Canada, or any other country or territory, to: (a) take any action or cause or permit anything that will impair, negate, invalidate, jeopardize, violate, diminish the value, infringe or otherwise, the intellectual property and/or proprietary rights of PROPTX, including without limitation, in and to PROPTX Intellectual Property and any part of, and/or relating to, any of the foregoing, trademarks, copyright, and/or patents; (b) directly or indirectly dispute or contest the ownership, validity, or enforceability of the intellectual property and proprietary rights of PROPTX including, without limitation, in and to PROPTX Intellectual Property and any part of, or relating to, any of the foregoing, trademarks, copyright, and/or patents; and/or (c) claim, assert any rights or interest to, use, or apply to register, record, or file any trademark or design application that is identical or similar to any PROPTX trademarks.
- 7.5 Waiver of Third Party Claims. Each of IDX Data Subscriber and Third Party Service Provider waives any claims against PROPTX resulting from rights that others may assert against IDX Data Subscriber and/or Third Party Service Provider based on IDX Data Subscriber's and/or Third Party Service Provider's exercise of the rights granted under this Agreement, including without limitation claims of trademark, copyright and/or patent infringement and/or violation of other intellectual property or proprietary rights.
- 7.6 Proprietary and Other Notices. Each of IDX Data Subscriber and Third Party Service Provider agrees that it will include and not alter or remove any trademark, copyright, other notices, and/or any disclaimers or other legends located or used on or in connection with the IDX System and any part thereof as required by PROPTX time to time.

ARTICLE 8 CONFIDENTIAL INFORMATION

- 8.1 Confidential Information. For the purposes herein, "Confidential Information" means any and all information and material proprietary to PROPTX and not generally known to the public, including confidential information, trade secret information, knowledge, processes, systems, technology, software and data and information of every kind, including IDX Data and information transmitted through IDX Datafeed (except to the extent to which this Agreement permits disclosure), IDX System and any part thereof, IP addresses, access codes and passwords, disclosed by PROPTX to IDX Data Subscriber or Third Party Service Provider

pursuant hereto or that IDX Data Subscriber or Third Party Service Provider may obtain knowledge or access to as a result of this Agreement. Without limiting the generality of the foregoing, PROPTX may mark Confidential Information "confidential" or "proprietary" but regardless of whether so marked or identified, any information or material, whether in oral, visual, audio, written or other form, that IDX Data Subscriber and Third Party Subscriber each knew or ought to have known was considered confidential or proprietary to PROPTX will be considered Confidential Information.

- 8.2 Exclusions. Notwithstanding the foregoing, IDX Data Subscriber and Third Party Service Provider shall not have any obligation under this Article 8, as evidenced by written record, with respect to any information, knowledge and/or data disclosed pursuant hereto to the extent same: (a) is or hereafter becomes part of the public domain through no wrongful act of IDX Data Subscriber or Third Party Service Provider; (b) is known to IDX Data Subscriber or Third Party Service Provider free of any obligation of confidentiality at the time of first disclosure hereunder; (c) is lawfully obtained by IDX Data Subscriber or Third Party Service Provider from a third party without obligation of confidentiality and without knowledge of breach of any obligation of confidentiality; (d) is independently developed by IDX Data Subscriber or Third Party Service Provider; or (e) is disclosed pursuant to a court order or other legal compulsion; provided, however, that prior to any such disclosure, IDX Data Subscriber or Third Party Service Provider, as applicable, shall, unless legally prohibited, promptly notify PROPTX in writing of the requirement or request to disclose, and cooperate with PROPTX in protecting against or limiting the scope of any such disclosure.
- 8.3 Confidentiality. IDX Data Subscriber and Third Party Service Provider each covenants and agrees that it shall: (a) receive and maintain all Confidential Information received hereunder in strict confidence; (b) use Confidential Information received hereunder strictly as permitted herein lawfully exercising the rights and/or performing its obligations hereunder and for no other purpose whatsoever; (c) use the highest degree of care to protect and handle Confidential Information received hereunder; and (d) advise PROPTX immediately of any circumstances, incidents or events which may impact, compromise, or in any way relate to, the privacy, confidentiality, availability or security of the Confidential Information, including, without limitation, the violation or non-observance of any term or condition contained in this Agreement.
- 8.4 Ownership of Confidential Information. All Confidential Information is and will remain the exclusive property of PROPTX and/or its licensors, and neither IDX Data Subscriber nor Third Party Service Provider will have any rights, by license or otherwise, to Confidential Information except as expressly provided herein.

ARTICLE 9 9 PRIVACY

- 9.1 Compliance with Privacy Laws. IDX Data Subscriber and Third Party Service Provider shall each ensure that all Personal Information that may be collected by IDX Data Subscriber or Third Party Service Provider in connection with its access to or use of the IDX System or any part thereof, will be collected, used, disclosed and maintained strictly in accordance with the requirements of applicable privacy legislation including the *Personal Information Protection and Electronic Documents Act* and with the PROPTX Requirements.

- 9.2 Listings. IDX Data Subscriber and Third Party Service Provider will, at all times, treat any personally identifiable information contained in the IDX System and any part thereof, as Personal Information and will protect and safeguard such Personal Information from any collection, use or disclosure that is not expressly permitted by this Agreement.
- 9.3 Consent. By agreeing to the terms of this Agreement and by accessing and using the IDX System or any part thereof and exercising any other rights granted herein, IDX Data Subscriber and Third Party Service Provider each consents to the collection, use and disclosure of its Personal Information by PROPTX in accordance with PROPTX's privacy policy located at PropTx's website, including to the extent necessary for PROPTX to communicate with IDX Data Subscriber and Third Party Service Provider and to administer and enforce this Agreement and the PROPTX Requirements. IDX Data Subscriber and Third Party Service Provider each acknowledges having read, understanding and agreeing to be bound by such privacy policy.
- 9.4 Electronic Address. IDX Data Subscriber represents, warrants and covenants to PROPTX that in providing to PROPTX any electronic address of Third Party Service Provider (including any third Party Service Provider contact), IDX Data Subscriber has obtained any necessary consent in compliance with applicable law in order for PROPTX to send electronic messages to such electronic address in connection with this Agreement, and the IDX Data Subscriber will notify PROPTX immediately if such consent is withdrawn.

ARTICLE 10 DISCLAIMER AND LIMITATION OF LIABILITY

- 10.1 DISCLAIMER. BROKERAGE, IDX DATA SUBSCRIBER AND THIRD PARTY SERVICE PROVIDER ACKNOWLEDGE AND AGREE THAT THE IDX SYSTEM AND ANY PART THEREOF, AND SERVICES ARE PROVIDED ON AN "AS IS" AND "AS AVAILABLE" BASIS, WITHOUT ANY GUARANTEE, REPRESENTATION, CONDITION OR WARRANTY OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING WITHOUT LIMITATION ANY IMPLIED WARRANTY OR CONDITION OR GUARANTEE OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, QUALITY, TITLE OR NON-INFRINGEMENT OR WITH RESPECT TO THE ACCURACY, CORRECTNESS, CURRENCY, RELIABILITY, USEFULNESS, OR COMPLETENESS OF IDX DATA, IDX DATAFEED OR WITH RESPECT TO THE USE OR THE RESULTS OF THE USE OF THE IDX SYSTEM AND ANY PART THEREOF, ANY SERVICES AND THOSE ARISING BY LAW, STATUTE, USAGE OF TRADE OR COURSE OF DEALING. PROPTX MAKES NO GUARANTEE, REPRESENTATION, WARRANTY OR CONDITION, EXPRESS OR IMPLIED, AND ASSUMES NO LIABILITY WHATSOEVER WITH RESPECT TO THE ADEQUACY OF THE, SERVICES, IDX SYSTEM, IDX DATAFEED, OR IDX DATA FOR ANY PARTICULAR PURPOSE OR WITH RESPECT TO ITS ADEQUACY TO PRODUCE ANY PARTICULAR RESULT OR THAT THE IDX SYSTEM AND ANY PART THEREOF, AND/OR SERVICES WILL OPERATE UNINTERRUPTED OR ERROR-FREE OR THAT ALL ERRORS WILL BE CORRECTED.
- 10.2 LIMITATION OF LIABILITY. NEITHER PROPTX NOR ANY OF ITS DIRECTORS, OFFICERS, EMPLOYEES OR AGENTS WILL BE LIABLE TO BROKERAGE, IDX DATA SUBSCRIBER, THIRD PARTY SERVICE PROVIDER, OR ANY

THIRD PARTY (INCLUDING WITHOUT LIMITATION IDX DATA SUBSCRIBER'S CLIENTS OR CUSTOMERS) FOR ANY DIRECT, INDIRECT, SPECIAL, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR EXEMPLARY DAMAGES OR DAMAGES OF ANY NATURE, INCLUDING ANY LOSS OF PROFITS OR REVENUE OR GOODWILL, OR INTERRUPTION OF BUSINESS IN ANY WAY ARISING OUT OF OR RELATED TO THIS AGREEMENT INCLUDING WITHOUT LIMITATION ANY INACCURATE, INCORRECT, UNRELIABLE, NOT CURRENT, NOT USEFUL, OR INCOMPLETE IDX DATA, IDX DATAFEED, THE TERMINATION OF THIS AGREEMENT, THE PERFORMANCE OR NON-PERFORMANCE OF THE IDX SYSTEM, THE IDX DATAFEED, THE SERVICES AND/OR THE USE OF ANY IDX DATA OR IDX DATAFEED MADE AVAILABLE PURSUANT HERETO, HOWSOEVER ARISING, INCLUDING WITHOUT LIMITATION, WHETHER IN CONTRACT, TORT, (INCLUDING NEGLIGENCE) FUNDAMENTAL BREACH OR OTHERWISE, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES AND WHETHER OR NOT SUCH DAMAGES ARE FORESEEABLE.

- 10.3 THIRD PARTY WEBSITES. THE IDX DATA OR ANY INFORMATION TRANSMITTED THROUGH AN IDX DATAFEED MAY INCLUDE LINKS TO THIRD PARTY WEBSITES OR FEEDS FROM THIRD PARTY WEBSITES (COLLECTIVELY "THIRD PARTY WEBSITES"). PROPTX DOES NOT WARRANT OR ENDORSE THE CONTENT CONTAINED IN ANY THIRD PARTY WEBSITE. PROPTX DOES NOT MAKE ANY ENDORSEMENT, REPRESENTATION, WARRANTY OR CONDITION, EXPRESS OR IMPLIED, OR STATUTORY, OF ANY KIND REGARDING ANY THIRD PARTY WEBSITE, INCLUDING REGARDING THE LEGALITY, ACCURACY, RELIABILITY, QUALITY, USEFULNESS, COMPLETENESS, TIMELINESS, NON-INFRINGEMENT, SECURITY, OR SUITABILITY OF ANY CONTENT ON A THIRD PARTY WEBSITE OR WHETHER OR NOT ANY NECESSARY CONSENTS REQUIRED UNDER APPLICABLE PRIVACY LAWS OR OTHER LAWS FOR ANY ASPECT OF ANY THIRD PARTY WEBSITE HAVE BEEN PROPERLY OBTAINED. PROPTX DOES NOT MAKE ANY ENDORSEMENT, REPRESENTATION, WARRANTY OR CONDITION, EXPRESS OR IMPLIED, REGARDING THE MERCHANTABILITY AND/OR FITNESS FOR A PARTICULAR PURPOSE OF ANY CONTENT, FUNCTIONS, GOODS OR SERVICES ON OR MADE AVAILABLE THROUGH ANY THIRD PARTY WEBSITES OR THAT THE OPERATION OF ANY THIRD PARTY WEBSITE WILL BE UNINTERRUPTED, FREE OF ERROR, VIRUSES, DEFECTS, OR ANY OTHER HARMFUL COMPONENTS OR THAT ANY OF THE FOREGOING WILL BE CORRECTED. THE CONTENT, FUNCTIONS, GOODS AND/OR SERVICES AVAILABLE ON OR THROUGH ANY THIRD PARTY WEBSITE IS NOT UNDER PROPTX'S CONTROL IN ANY WAY WHATSOEVER AND IF THIRD PARTY SERVICE PROVIDER OR IDX DATA SUBSCRIBER CHOOSES TO ACCESS OR HAVE ANY DEALINGS WITH ANY THIRD PARTY WEBSITE, IDX DATA SUBSCRIBER AND THIRD PARTY SERVICE PROVIDER DO SO ENTIRELY AT THEIR OWN RISK.

ARTICLE 11 INDEMNITY AND REPRESENTATIONS AND WARRANTIES

- 11.1 Indemnity. Brokerage, IDX Data Subscriber and Third Party Service Provider jointly and severally agree to indemnify, defend and hold harmless PROPTX, its

directors, officers, employees and agents, from and against any and all claims, demands, suits, proceedings, actions, causes of action and/or liability of any kind whatsoever, for any and all damages, losses, costs and/or expenses (including the payment of all legal expenses, including reasonable attorneys' fees and costs) arising out of or related to any and all breaches by IDX Data Subscriber and/or Third Party Service Provider of any term or condition of this Agreement, including any breach of representation or warranty set forth in this Agreement, receipt of the IDX Datafeed, and the use and display of information transmitted through an IDX Datafeed. Each of IDX Data Subscriber and Brokerage is and shall be fully and directly liable for any breach by Third Party Service Provider under this Agreement and/or PROPTX Requirements. PROPTX shall have the right to control its own defence and engage legal counsel of its choosing.

11.2 Representations and Warranties.

- (a) Each party represents and warrants to the others that this Agreement, when executed by such party, will be valid, binding and enforceable with respect to such party in accordance with its terms.
- (b) IDX Data Subscriber represents and warrants that:
 - (i) IDX Data (including Data transmitted through an IDX Datafeed) will be used by IDX Data Subscriber and Third Party Service Provider strictly as permitted herein;
 - (ii) it has executed an agreement with Third Party Service Provider establishing the Third Party Service Provider's right to receive and access IDX Datafeed (per the "Third Party Service Provider IDX Data Transfer Authorization Form" made available to the IDX Subscriber, Broker of Record and Third Party in the PROPTX Online Agreements System) and shall acknowledge and confirm to PROPTX electronically its selection of Third Party Service Provider to operate Subscriber Website on its behalf;
 - (iii) it has made Third Party Service Provider aware of PROPTX Requirements;
 - (iv) Subscriber Website(s)' terms of use are compliant with PROPTX Requirements and it has made Third Party Service Provider aware of such terms of use;
 - (v) the execution of this Agreement and/or the performance of its obligations under this Agreement will not constitute a default, or an event which with the passage of time, the giving of notice, or both, would constitute a default, under any other agreement by which it is bound; and
 - (vi) it is a Member in good standing in accordance with Association By-Laws and Trust in Real Estate Services Act, 2002.
- (c) Third Party Service Provider represents and warrants that:
 - (i) it is not and shall not be under any disability, restriction, or prohibition related to the execution of this Agreement and the performance of its obligations under this Agreement;
 - (ii) that the grant of rights herein to Third Party Service Provider and the fulfillment of its obligations as contemplated under this Agreement are proper and lawful; and
 - (iii) the execution of this Agreement and/or the performance of its obligations under this Agreement will not constitute a default, or an event which with

the passage of time, the giving of notice, or both, would constitute a default, under any other agreement by which it is bound.

ARTICLE 12 TERM AND SUSPENSION OR TERMINATION

- 12.1 Term. The term of this Agreement shall commence on the Effective Date and shall remain in full force and effect until or unless suspended or terminated as further described herein.
- 12.2 Suspension. In the event IDX Data Subscriber or Third Party Service Provider is in breach of this Agreement, or of any of the PROPTX Requirements, as determined by PROPTX in its sole discretion, PROPTX may immediately suspend without notice IDX Data Subscriber's and Third Party Service Provider's access to and use of the IDX System. PROPTX may end a suspension, at its sole discretion, by notice to IDX Data Subscriber.
- 12.3 Termination. Without limiting any other rights or remedies available to PROPTX under the terms of this Agreement, the PROPTX Requirements, at law or in equity, PROPTX may immediately terminate this Agreement and IDX Data Subscriber's and Third Party Service Provider's access to and use of the IDX System, in which case IDX Data Subscriber and Third Party Service Provider shall comply with any applicable procedures and obligations contained herein and/or in the PROPTX Requirements in the event of any of the following:
- (a) IDX Data Subscriber or Third Party Service Provider is in breach of:
 - (i) any term or condition of this Agreement, which is not cured (if capable of being cured) within 10 days after notice from PROPTX (provided that, notwithstanding the foregoing, if within 48 hours after such notice from PROPTX, IDX Data Subscriber or Third Party Service Provider does not notify PROPTX in writing of actions being taken to cure the breach, this Agreement shall immediately terminate at the end of such 48 hour period);
 - (ii) any representation, warranty, covenant, term or condition contained in the PROPTX Requirements, which is not cured within the applicable cure period, if any, as set forth in the PROPTX Requirements in respect of the specific breach; or
 - (iii) any provisions contained in *Trust in Real Estate Services Act, 2002*, the Association By-Laws or any other applicable laws;
 - (b) Third Party Service Provider no longer being designated by IDX Data Subscriber to operate Subscriber Website;
 - (c) IDX Data Subscriber ceasing to maintain its status with PROPTX;
 - (d) IDX Data Subscriber ceasing to be employed, appointed or authorized to trade in real estate by its Brokerage or if IDX Data Subscriber changes Brokerages (in which case, IDX Data Subscriber must enter into a new IDX Data Agreement with PROPTX with the authorization of its new Broker of Record);
 - (e) IDX Data Subscriber or Third Party Service Provider accessing the IDX System and/or downloading IDX Datafeed in an unauthorized manner and/or that hinders the ability of Participating IDX Data Subscribers from accessing the IDX System and/or receiving or downloading IDX Datafeed;
 - (f) IDX Data Subscriber or Third Party Service Provider violating or breaching any PROPTX Requirements or this Agreement; or

- (g) IDX Data Subscriber or Third Party Service Provider failing to make any required payments to PROPTX.
- 12.4 Notice of Termination. IDX Data Subscriber may elect to no longer participate in the IDX System and thereby terminate this Agreement upon fifteen (15) business days written notice to PROPTX of such termination or online by submitting a 'PROPTX IDX Unsubscribe Notice' to PROPTX via procedure set out in the PROPTX Online Agreements System.
- 12.5 Discontinuance of IDX System. In the event PROPTX, in its sole discretion, decides at any time to discontinue offering the IDX System or any part thereof, PROPTX may terminate this Agreement and accordingly terminate IDX Data Subscriber and Third Party Service Provider access to and use of the IDX System and any part thereof.
- 12.6 Return, Destruction, etc.. Each of IDX Data Subscriber and Third Party Service Provider shall promptly cease all use of Confidential Information, Personal Information, IDX System and any part thereof, and any other proprietary and confidential information received hereunder upon any suspension or termination of its access to and use of the IDX System and any part thereof pursuant to this Agreement and shall promptly, by secure means, permanently delete, erase and destroy any and all Confidential Information, Personal Information, IDX Data (including IDX Data transmitted through an IDX Datafeed) and any materials (in any medium) containing or reflecting any IDX Data (including any IDX Data transmitted through an IDX Datafeed) including all copies, extracts, reproductions, or otherwise, in whole or in part, that each has stored anywhere and by any means, including without limitation on magnetic media or other electronic or digital storage, including all backup copies, in its possession or under its control, as well as any copies in the possession or under the control of its representatives, immediately upon termination of this Agreement, but in any event, not later than seven (7) days after termination of this Agreement, for any reason whatsoever. IDX Data Subscriber and Third Party Service Provider shall each certify in writing to PROPTX that each has complied with the foregoing.
- 12.7 Effect of Suspension or Termination; Survival. Upon any suspension or termination of this Agreement for any reason whatsoever, or IDX Data Subscriber's rights hereunder, any and all licenses and rights granted herein to IDX Data Subscriber and Third Party Service Provider to access and use the IDX System and any part thereof shall immediately terminate. Suspension or termination of this Agreement, for any reason whatsoever, shall not limit PROPTX from pursuing any other remedies available to it under the PROPTX Requirements, or at law or in equity, including, if applicable, injunctive relief.
- 12.8 Nonrefundable. No Fees, portion of the Fees, or other fees payable by IDX Data Subscriber or Third Party Service Provider under this Agreement will be refunded to Third Party Service Provider or IDX Data Subscriber upon suspension or termination of this Agreement for any reason whatsoever.
- 12.9 PROPTXuirements. Suspension or termination of this Agreement for any reason whatsoever shall not relieve each of Brokerage, IDX Data Subscriber, and Third Party Service Provider of any of its responsibilities, obligations, liabilities, and/or indemnifications herein, including the PROPTX Requirements, which responsibilities, obligations, liabilities, and/or indemnifications shall survive the termination of this Agreement.

ARTICLE 13 REMEDIES

- 13.1 Remedies. IDX Data Subscriber and Third Party Service Provider agree that a breach of this Agreement will result in immediate and irreparable injury and harm to PROPTX. In such event, PROPTX shall have the right to immediately terminate the right of IDX Data Subscriber and Third Party Service Provider to receive the IDX Datafeed and access the IDX System and to obtain an injunction, specific performance, and/or other equitable relief to prevent the breach under this Agreement; provided, however, that this shall in no way limit any other remedies which PROPTX may have including, without limitation, the right to seek monetary damages.

ARTICLE 14 GENERAL

- 14.1 Notices. Any notice, direction or other communication required or permitted to be given hereunder shall be in writing and shall be sufficiently given if delivered personally, mailed by prepaid registered mail, or transmitted by facsimile or other form of recorded communication to the appropriate party as follows:
- (a) in the case of PROPTX, by email to dataagreements@proptx.ca
 - (b) in the case of IDX Data Subscriber: at IDX Data Subscriber's business address, facsimile number or email address last filed by IDX Data Subscriber with PROPTX, addressed to the attention of IDX Data Subscriber.
 - (c) in the case of Third Party Service Provider: at the Third Party Service Provider's business address, facsimile number or email address last filed by Third Party Service Provider with PROPTX, addressed to the attention of Third Party Service Provider.

Any party may change its address for service from time to time by written notice given to the other parties in accordance with this Agreement.

Notwithstanding the foregoing, IDX Data Subscriber and Third Party Service Provider hereby agree and consent to the receipt of electronic legal notices regarding this Agreement upon access to the IDX System.

- 14.2 Entire Agreement. The terms of this Agreement, together with the PROPTX Requirements, constitute the entire agreement between the parties with respect to the subject matter herein. There are no representations, warranties, terms, conditions, promises, undertakings or collateral agreements, oral or written, among the parties with respect to the subject matter herein other than those set forth or expressly referred to herein.
- 14.3 Amendment. PROPTX may, in its sole discretion, change, modify, add or delete portions of this Agreement at any time and from time to time without notice to IDX Data Subscriber or Third Party Service Provider by posting the then current version of this Agreement on PROPTX's website, PROPTX's MLS® System or the IDX System.
- 14.4 Further Assurances. The parties shall, from time to time, execute and deliver all such other and further deeds, documents, instruments and assurances as may be reasonably necessary or required to carry into force and effect the purpose and intent of this Agreement.

- 14.5 Relationship. Nothing in this Agreement shall be construed to create a partnership, joint venture, franchise, fiduciary, employment or agency relationship between PROPTX and IDX Data Subscriber or between PROPTX and Third Party Service Provider. Neither IDX Data Subscriber nor Third Party Service Provider has any express or implied authority to assume or create any obligations on behalf of PROPTX or to bind PROPTX to any contract, agreement or undertaking with any third party.
- 14.6 Waiver. The waiver by PROPTX or the failure of PROPTX, to require or enforce the performance of any provision of this Agreement or to take action with respect to any breach of any term, covenant, or condition herein contained shall not be construed as a waiver of any provision or right nor to be deemed to be a continuing waiver or waiver of such term, covenant, or condition, or subsequent breach of the same, or any other term, covenant or condition contained in this Agreement. A waiver by PROPTX of any default hereunder or of any of the terms and conditions of this Agreement shall be in writing signed by PROPTX and shall not be deemed to be a continuing waiver or a waiver of any other default or of any other term or condition, but shall apply solely to the instance to which such waiver is directed.
- 14.7 Assignment. Neither this Agreement nor any of the rights or obligations under this Agreement may be sublicensed, conveyed, sold, given, assigned or otherwise transferred, including by operation of law, by IDX Data Subscriber or Third Party Service Provider, without the prior written consent of PROPTX. PROPTX may assign its rights and obligations under this Agreement.
- 14.8 Enurement. This Agreement shall be binding upon and ensure to the benefit of the parties and their respective successors and permitted assigns.
- 14.9 Governing Law and Forum. This Agreement shall be governed by and construed in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein (excluding any conflict of laws or choice of law principles). The parties hereby irrevocably submit to the exclusive jurisdiction of the courts of the Province of Ontario and the federal courts of Canada with subject matter jurisdiction with respect to any matter arising hereunder or relating hereto.
- 14.10 Severability. In the event any provision of this Agreement is found to be invalid, illegal or unenforceable, in whole or in part, by a court of competent jurisdiction, the validity, legality and enforceability of any of the remaining provisions or part thereof shall not in any way be affected or impaired.
- 14.11 Force Majeure. PROPTX shall not be responsible to Brokerage, IDX Data Subscriber, Third Party Service Provider, or any third party for any failure or delay in performance due to circumstances or causes beyond its reasonable control, including any labour dispute, acts of God, natural disasters, fire, utility or communications failures, vandalism, war, acts of terrorism, riots, embargoes, or laws, regulations or orders of any governmental or regulatory entity.
- 14.12 Headings, Gender, Number and Including. The division of this Agreement into articles and sections and the use of headings are for purposes of reference only and shall not limit or otherwise affect the interpretation of this Agreement. In this Agreement, unless there is something in the subject matter or context inconsistent therewith, words importing a specific gender include all genders and words importing the singular include the plural and vice versa. Where the word

"including" or "includes" is used in this Agreement, it means "including (or includes) without limitation".

- 14.13 Language. This Agreement and any documents relating thereto have been prepared in the English language at the express request of the parties. Les parties ont exigé, et par les présentes confirment leur demande, que ce contrat soit rédigé en anglais seulement.
- 14.14 Survival. The following Articles shall survive the suspension or termination of this Agreement, regardless of the reasons for suspension or termination, in addition to any other provision herein which by law or by its nature should survive: Articles 1 to 3 and 5 to 14.
- 14.15 Execution. This Agreement may be executed in one or more counterparts, each of which when so executed and delivered shall be an original and all of which together shall constitute one and the same instrument. Each of the parties acknowledges and agrees that the act of checking the box below, as applicable, will attribute its signature to this Agreement with the intent to create a binding agreement with the same legal effect, validity and enforceability of a handwritten signature and paper document.

I, [TANMAY RAO](#), acknowledge and confirm that I have read, understand, and agree to be bound by all the terms and conditions of this Agreement and I have full power and authority to enter into this Agreement.

Member Legal Name: TANMAY RAO

Member Trade Name: TANMAY RAO

Member Email: tanmay_1@hotmail.com

Membership #: 9608879

Brokeage: EXP REALTY

Brokerage Address: 4711 YONGE ST 10TH FLR

I, [TANMAY RAO](#), the IDX Subscriber (the Member) acknowledge that the selected third party and the entire IDX Datafeed Agreement must still be acknowledged and approved by both my Broker of Record and PropTx before it is active, and that upon approval by PROPTX I will receive an email acknowledgement with a full copy of the agreement in PDF format.

Fees (Schedule A)

Currently none listed.

IDX Data Subscriber Website Information (Schedule B)

With this form, the undersigned IDX Data Subscriber acknowledges that the information below is provided to identify the URL(s) of its Subscriber Website(s):

Please specify the URL(s) of Subscriber Website(s) (up to a maximum of three (3)): (ex: <http://www.mywebsite.com>)

Subscriber Website URL #1: <http://pureproperty.ca>

Subscriber Website URL #2:

Subscriber Website URL #3:

the IDX Data Subscriber, [TANMAY RAO](#), certifies that the above information is correct and acknowledges that if, at any time, any of such information changes, IDX Data Subscriber will provide full disclosure to PROPTX by submitting a Subscriber Website URL Change/Update Form.

PropTx Trademark(s) (Schedule C)

Currently none listed.

THIRD PARTY SERVICE PROVIDER IDX DATA TRANSFER AUTHORIZATION

The IDX Data Subscriber, [TANMAY RAO](#), and Broker of Record acknowledge to PROPTX that the IDX Data Subscriber and Brokerage identified herein along with all of its associated offices, approve the Third Party Service Provider identified herein to receive IDX Datafeed on behalf of IDX Data Subscriber, as described in the IDX Data Agreement executed between PROPTX, IDX Data Subscriber and Third Party Service Provider and agreed to and acknowledged by Brokerage (the "IDX Data Agreement").

IDX Data Subscriber hereby authorizes and directs PROPTX to permit access of IDX Datafeed to Third Party Service Provider identified herein pursuant to the terms and conditions of the IDX Data Agreement.

IDX Data Subscriber represents, warrants and covenants that the IDX Datafeed will be received and used by Third Party Service Provider (i) as an authorized agent of the IDX Data Subscriber only for the purposes set out in the IDX Data Agreement, (ii) only by the Third Party Service Provider on behalf of the IDX Data Subscriber and for no other purpose or person, and (iii) in full compliance with all applicable laws, statutes and regulations including the Personal Information Protection and Electronic Documents Act (Canada) and the PROPTX Requirements.

IDX Data Subscriber covenants and agrees that as between it and PROPTX, it will be fully responsible for the actions and omissions of Third Party Service Provider. Should Third Party Service Provider use the IDX Datafeed in any way that contravenes this Authorization, including without limitation, in a manner not permitted by the IDX Data Agreement, PROPTX shall immediately cease delivery of the IDX Datafeed to such Third Party Service Provider without prejudice to any other rights or remedies PROPTX may have against IDX Data Subscriber or Third Party Service Provider.

This Authorization includes all the terms and conditions set out in the IDX Data Agreement, which each of Brokerage, IDX Data Subscriber and Third Party Service Provider acknowledges having read, understood and accepted and to which each agrees and acknowledges it is bound.

I, [TANMAY RAO](#), the IDX Data Subscriber acknowledge and confirm that I have read, understand and agree to the terms and conditions of this Third Party Service Provider IDX Data Transfer Authorization.

ACKNOWLEDGEMENT AND AGREEMENT BY THIRD PARTY

Third Party Name:

Third Party Contact: Tanmay Rao

Third Party Email: raotanmay991@gmail.com

Third Party Phone:

Third Party Signatory: Tanmay Rao

I, [Tanmay Rao](#), confirm that I have the authority to bind the Third Party Service Provider identified herein and, for good and valuable consideration, the receipt and sufficiency of which is acknowledged, accept and agree to the terms and conditions of this PROPTX IDX Data Agreement and Third Party Service Provider IDX Data Transfer Authorization for and on behalf of the Third Party Service Provider.

ACKNOWLEDGEMENT AND AGREEMENT BY BROKERAGE

Brokerage: EXP REALTY

Brokerage/Branch Code: 285400

Brokerage Address: 4711 YONGE ST 10TH FLR

Broker of Record Legal Name/Designate Legal Name: KATHERINE SARAH MILIAN

Broker of Record Trade Name/Designate Trade Name: KATHERINE SARAH MILIAN

I, [KATHERINE SARAH MILIAN](#), Broker of Record/Designate for the Brokerage identified herein, acknowledge and confirm for and on behalf of the Brokerage that it has read, understands and agrees to be bound by the terms and conditions of this PROPTX IDX Data Agreement and specifically including sections 2.4, 6.3(g), 10.1, 10.2, 11.1, 12.9 and 14.11 herein, and further that:

1. Brokerage has opted in to the IDX and is bound hereto;
2. this Agreement is valid, binding and enforceable with respect to Brokerage;
3. it is and shall be fully and directly liable for any breach or any other unauthorized activity by IDX Data Subscriber and Third Party Service Provider under, or in any way relating to, this Agreement; and
4. PROPTX shall have no liability of any nature to Brokerage for, and waives all claims arising out of or related in any way, to this Agreement

DATED as of November 26, 2024

I, [KATHERINE SARAH MILIAN](#), the Broker of Record/Designate for the Brokerage identified herein, acknowledge and confirm to PROPTX that the Brokerage, along with all of its associated offices, approves the IDX Data Subscriber Website to receive IDX Datafeed from PROPTX, either directly or through its Third Party Service Provider, as described in this PROPTX IDX Data Agreement. Further more I acknowledge and confirm that I have read, understand and agree to the terms and conditions of the Third Party Service Provider IDX Data Transfer Authorization set out herein for and on behalf of the Brokerage.

I, [KATHERINE SARAH MILIAN](#), the Broker of Record/Designate for the Brokerage whose Brokerage/Branch code(s) are noted in this Agreement and represent and warrant that I have the authority to enter into this PROPTX IDX Data Agreement (including the Third Party Service Provider IDX Data Transfer Authorization) for an on behalf of such firm(s).